

The Impaired Driver Program - Alcohol & Drug Rehabilitation Program

- The Drinking Driver Program (DDP) is now called the Impaired Driver Program (IDP). As this new name is being implemented, you may see the two names interchangeably.

What happens if I am convicted of an alcohol or drug-related violation in New York State?

If you are convicted of an alcohol or drug-related driving violation, your license or privilege to drive in New York State will be revoked or suspended [1]. However, you may be eligible for a conditional license or a conditional driving privilege if you participate in New York State's Impaired Driver Program (IDP) (previously known as Drinking Driving Program (DDP)) or an approved out-of-state program.

Your Order of Suspension or Revocation from the Department of Motor Vehicles (DMV) will indicate a nearby state or county motor vehicle office where you may enroll in the Impaired Driver Program and apply for a conditional license/privilege, if applicable.

Your license suspension or revocation officially begins at your hearing or sentencing in court, unless the court gives you a Continuation of Driving Privileges (MV-1192). Your credit for serving the suspension or revocation begins on the effective date of the order. If you receive a continuation, your suspension or revocation will begin 20 days after sentencing.

It is a criminal offense to drive a motor vehicle while your license is suspended or revoked. If you are convicted of driving under suspension or revocation, you may be fined and you may be sentenced to jail and/or probation. In addition, the police may impound the vehicle you were driving when arrested.

If you are placed on probation because of this conviction, you also must bring written permission from the sentencing court, or your probation officer, that allows you to apply for a license.

Driver Responsibility Assessments

If you are convicted of Driving While Intoxicated (DWI), Driving While Ability Impaired (DWAI) or Driving While Ability Impaired by Drugs, or if you are found to have refused to submit to a chemical test, you will be required to pay a driver responsibility assessment each year for the next three years. For more information, see Pay driver responsibility assessment [2].

Participation in the Impaired Driver Program (IDP) will not prevent, reduce, or delay fines, fees, or penalties imposed under the driver responsibility assessment program.